**Standard Operating Procedure (SOP)**

Country Specific Requirements Ukraine

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Version: 4.0

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|---|---|
| Effective Date: | 2025-07-04 |
| QMS Area: | Quality |
| QMS Chapter: | 4.9 Product Safety, Product Quality and Pharmacovigilance |

Applicability

| | |
|---|---|
| Bayer Level: | CH, PH |

This document is electronically approved (signatures on the last page)

## Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☐ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☒ Global Business Services Gdansk
☐ Global Business Services India
☐ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
☐ Global
☒ Specific Country: Ukraine

Relevance for R&D QMS
☐ Affected
☐ Interface
☒ N/A

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|---|---|
| **Version:** | 4.0 |
| **Document Author(s):** | Yuliya Yanchyk (GLOGX) |
| **Document Approver(s):** | CQH: Svitlana Krokhmal (GNQOT)<br>PTC Team Lead/SME: Katarzyna Mazur-Kominek (GLISG) |
| **Training Role(s):** | GBS_GDN_PTC_CLUSTER 4 |
| **Relevant Process and Activities:** | PTC |

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# 1 Scope and Framework

## 1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, classification forwarding for investigation to the RQU, and final approval including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

## 1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

# 2 Abbreviations

| | |
|---|---|
| **AE** | Adverse Event |
| **CMO** | Contract Manufacturing Organization |
| **CQH** | Country Quality Head |
| **CQU** | Country Quality Unit |
| **GBS** | Global Business Service |
| **OTC products** | Over-the-counter products |
| **PTC** | Product Technical Complaint |
| **PV** | Pharmacovigilance |
| **RQU** | Responsible Quality Unit |

# 3 Purpose & Set-Up

## 3.1 Purpose

Country Specific Requirements for Ukraine are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Service all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

## 3.2 General guidance

The employees of Global Business Services follow the SOP during complaint processing in the complaint database on behalf of the Country Quality Units.

### 3.3 Roles and responsibilities

| | |
|---|---|
| **GBS team** | - Enters PTCs, Suspected Counterfeit Incidents and Usability Issues according to defined timelines in a timely manner, entering them into the global complaint database in English language<br>- Organizes missing information and asks CQU for any support contacting the complainant if not possible/allowed by GBS (e.g. data privacy, non-hosted language)<br>- Performs the initial intake of complaints after receipt<br>- Informs the CQU about all PTCs where local authorities are involved, about all potential counterfeits and any other cases described in this SOP<br>- Informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaints, including the unique complaint database number and all relevant follow-up information<br>- Forwards the case to the respective RQU for further assessment<br>- Initiates the process of sample shipment if requested by RQU or specified in any other guidance document<br>- Reviews the case for plausibility and closes the complaint case in complaint database<br>- Sends out standard response letters in case it is agreed with the CQU<br>- Supports the process for reimbursement management<br>- Forwards all cases that are not PTCs back to the CQU or to the appropriate function for further processing |
| **Country Quality Head (CQH) / Country Quality Unit (CQU)** | - Is responsible for regular KPI evaluation to get overview of complaint activities at the GBS<br>- Supports the GBS in organizing missing complaint information<br>- Organizes the complaint sample and sends it to the RQU if requested.<br>- Sends out the Response Letters to the complainants as requested and agreed with the GBS<br>- Contacts local CMO on request of GBS as RQU to get investigation reports from the respective CMO<br>- Ensures that all changes within the country law and regulation are directly notified to the GBS and that the Country Specific SOP is updated |

# 4 Specific requirements regarding PTC handling

## 4.1 Country Specific Requirements listed by different topics

| Description | Assigned Roles & Document Reference |
|---|---|
| **4.1.1 General Information**<br>In Ukraine the company operates under the legal entity with importer status named Bayer Ltd. The main office is in Kyiv.<br>Local warehouse is in Kyiv region, provided and serviced by a third party. | |
| **4.1.2 Contact list**<br>Acting CQH: Svitlana Krokhmal *svitlana.krokhmal@bayer.com*<br>General email address *ua.quality@bayer.com*<br>**Remark:**<br>Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint:<br>*https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list* | |
| **4.1.3 Escalation Rules**<br>The CQH and the CQH deputy should be notified via immediate action in the complaint database about any complaint case referring to at least one of the following situations:<br>- Suspected Counterfeit Cases<br>- Any cases involving Health Authorities<br>- Cases with final risk category high or medium<br>- Confirmed suspected counterfeit cases.<br><br>In case of questions or comments regarding products which are not classified as PTC, this information is forwarded to the CQU *svitlana.krokhmal@bayer.com* and *communication.ukraine@bayer.com* in cc for further handling.<br><br>**Remark:**<br>The current names and e-mail addresses of the CQH and the CQH deputy are found on the QINT SharePoint:<br>*https://bayergroup.sharepoint.com/sites/oneqint/SitePages/Who%20are%20we.aspx#country-quality-list* | GBS |
| **4.1.4 Pharmacovigilance cases**<br>If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address: *pv.smbs@bayer.com* | GBS |
| **4.1.5 Product Samples**<br>The complaint sample is physically retrieved from the complainant if RQU requests sample for an investigation, or if this is or specified in any other guidance document. | GBS |

| Description | Assigned Roles & Document Reference |
|---|---|

In case complaint sample is required for an investigation GBS informs CQU via e-mail (sends e-mail to *ua.quality@bayer.com*) that the sample is requested for an investigation and must be retrieved. GBS provides CQU with contacts data of complainant/distributors and an address of the recipient. CQU is responsible for obtaining a sample from complainant.

**Retrieval of complainant sample from individuals/ physicians**

Sample from customers can be returned only via reverse supply chain (customer to pharmacy, pharmacy to distributor, distributor to Bayer warehouse). The customer is asked by CQU to take a sample to the pharmacy where the complaint product was

bought. If the pharmacy's contact is available CQU notifies about a product returning and supports, it if needed.

**Retrieval of complainant sample from distributors**

Obtaining the complaint samples from distributors is a part of Product returning procedure, which is under local responsibility. CQU provides distributor with the confirmation of return product and monitors the sample arriving.

After arriving the samples at Bayer warehouse CQU proceeds with sample sending. Samples are shipped to the RQU/ declared address by the logistics department employee via courier services (e.g. DHL).

CQU notifies about the sample sending GBS officer via e-mail.

**Remark:** In the current circumstances samples sent only for critical cases upon the CQH/CQU confirmation.

**4.1.6 Statement letter** — GBS

**Acknowledgement Letter when a complaint comes in:**

After a complaint is handed in, an immediate acknowledgement of receipt is sent out to the complainant. If there are missing data in the initial complaint (for ex. batch number, photos etc.), the acknowledgment letter will be expanded with the request for providing missing data by the complainant.

Templates of standard Acknowledgement letter in Ukrainian language are available in Annex 2.

**Exceptions:**

# Authority request (the letter is sent out by the CQU).
# Distributor complaint, where CQU confirmed returning of product (acknowledgement and response letters are unnecessary).

**Response Letter after closing:**

As per local requirements the response should be always provided despite the request from the reporter. (not applicable if the CQH already confirmed the reimbursement) Standard response letter is sent out without involvement of the CQU.

| Description | Assigned Roles & Document Reference |
|---|---|

**Exception:**

# Confirmed final risk categories high and medium
# In case of PTC + AE: involvement of PV
# Authority responses
# Health Care Professionals complaints
# Confirmed counterfeit cases.

Templates of standard Response letter in Ukrainian language are available in Annex 3.

In case if complainant`s query cannot be covered by a standard template response, GBS can ask CQU for assistance. PTC officer sends a request to the CQU to provide a response to the reporter. Email must include complaint database case number and investigation results.

**Remark:**

For unconfirmed but plausible defects the GBS informs the CQU about the investigation outcome and the CQU makes decision case by case whether the reimbursement is granted (response for confirmed defect is sent), or not (response for unconfirmed defect is sent).

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**4.1.7 RQU Contact list** — GBS

For CH products registration status in the respective country as well as Manufacturing Site are available via SYNAPS: go/synaps.

List with the respective RQU contact names are provided by the Divisional Quality Assurance function and available on the SharePoint:

PH: *PH RQU responsible list_HJ.xlsx*

CH: *IQMS_MASTER LIST COMPLAINT RESPONSIBILITIES.xlsx*

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**4.1.8 List of Local Opportunities Products**

N/A

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**4.1.9 Data Privacy Requirements**

Any private information of complainants can be processed if the following requirements are met:

Received explicit consent of the complainant to process the data.

# The complainant is familiarized with the data privacy policy and gives his consent, when applying through the company’s website.

# While an oral conversation, the complainant is also asked for consent that is specified in the Product Complainant Form.

The company ensures and guarantees the confidentiality of the personal data.

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| Description | Assigned Roles & Document Reference |
|---|---|
| Bayer Ltd. and GBS ensure above requirements so complaints can be processed by GBS in the complaint database. | |
| **4.1.10 Gathering additional information (including obtaining translation)**<br>In cases when the CQU receives a complaint firstly by a phone, then Product Complaint Form (see Annex 1) is used to document received information. The CQU sends this form to the GBS via e-mail as soon as possible, because the timelines start when phone complaint is received by the CQU.<br><br>Complaints in Ukrainian are hosted in GBS office by GBS PTC officer<br>familiar with Ukrainian language. In case of PTC officer`s absence, the backup officers follow the translation rules in regards with standard procedure for macro languages. | GBS<br>CQU |
| **4.1.11 Reimbursement and Replacement**<br>Whether a reimbursement for a product is granted, depends on local country regulations described in detail below.<br><br>**Complaints by individuals/ physicians:**<br><br>Reimbursement for the product is possible only through the reverse supply chain. Consumer is asked by CQU to take a sample to the pharmacy, where the complaint product was bought, and receive a new one or money back.<br>CQU tracks the movement of the complaint sample in order to recognize it while processing the returning procedure and ensures reimbursement to distributor. CQU supports consumers if needed.<br><br>**Complaints by Distributors:**<br>Reimbursement for distributors is provided after confirmation of product returning by CQU/Order to Cash department via financial settlements/ sending credit note according to local procedure.<br>Reimbursement is performed regardless of the RQU assessment. However, GBS can be asked by CQU about finalization of PTC or whether RQU assessment is given.<br><br>**Remark:**<br>For complaints with RQU abbreviated workflow (CH risk-based approach cases and CH/PH minor damage cases) with no conclusion, the decision about reimbursement is determined case by case by the CQH or CQU in case of CQH absence, by performing of local evaluation of complaint.<br>In case both the above-mentioned colleagues are absent the PTC officer is authorized to send the response which confirms the replacement (Response for confirmed defect is sent out). Applicable only for complains where photos/video available, the defect is clearly visible, the number of complaint packages is less than 50.<br>If the situation occurs that no photos or video was provided, or the defect is not visible on the provided photos, the replacement can not be confirmed. In this case response for unconfirmed quality defect is sent out. | GBS |

| Description | Assigned Roles & Document Reference |
|---|---|
| **4.1.12 Mandatory Spot Checks for Translations**<br>N/A | GBS |
| **4.1.13 Exceptions and special cases**<br>N/A | |
| **4.1.14 Others**<br>**4.1.14.1 Shared timelines**<br>If a situation occurs, that CQU will be first notified of the complaint, the timelines for entering complaints into complaint database are shared between CQU and GBS.<br>Regardless of whether the complainant provided all mandatory data or not, CQU forwards the PTC to GBS with the first message as soon as possible, and no later than 24 hours before the data entry timeline ends.<br>CQU includes date of first awareness of a PTC in the message subject sent to GBS. Additionally, in case of urgency, remark "Urgent" is also added to the message subject to ensure that PTC can be recognized and prioritized by GBS. | |

## 5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in GBS”

## 6 External References

- N/A

# History of changes

| Version | Significant changes with respect to previous version | Effective date |
|---|---|---|
| 1 | New document | 2020-06-08 |
| 2 | # Document is updated according to SSC-PTC-BP-002 “Country specific SOP template”:<br>Chapter 3.3. SSC responsibilities updated<br>Chapter 4.1.6 Escalation rules updated<br>New chapter 4.1.12 Mandatory Spot Checks for Translation<br>Annex 1 (Product Complaint Form) added<br># Format of “Applicability Sheet” was updated and renamed to “Distribution Sheet”<br># Change of document numbering in header from SSC-SOP-UA-007 to SSC-PTC-SOP-UA-007<br># Chapter 3.3 Contacting local CMO was deleted from this Country Specific SOP<br># Chapter 4.1.3 Escalation rules are updated. Duration of Warehouse manager's feedback is specified.<br># Chapter 4.1.5 Product Samples is updated<br># Chapter 4.1.6 Statement letter is updated<br># Annex 2 Acknowledgement letter is updated<br># Annex 3 Response letter is updated | 2020-01-17 |
| 3 | # Chapter 4.1.2 CQU name and email address updated<br># Chapter 4.1.3 Escalation riles updated<br># Chapter 4.1.6 Response letter rule updated<br># SSCDN, SSC changed into GBS<br># Annex 2, Acknowledgment letter updated<br># Annex 3, Response letter updated | 2023-16-10 |
| 4 | # Document is updated according to SSC-PTC-BP-002 “Country specific SOP template”:<br>- Distribution sheet updated<br>- Training role updated<br>- Through the document, “Dev@Com” replaced by “Complaint Database”<br>- Roles and responsibilities updated based on SSC-PTC-SOP-001 v.6.0<br>- Section 4.1.2 Reference to QINT SharePoint updated<br>- Section 4.1.3 Escalation rules: escalation on initial risk category removed, escalation regarding final risk categories changed to high and medium according to SSC-PTC-SOP-001 v.6.0. Reference to QINT SharePoint updated.<br>- Section 4.1.7 Updated references to global lists with RQU names for PH and CH<br># Chapter 4.1.2 Contact list updated<br># Chapter 4.1.3 Escalation rules updated<br># Chapter 4.1.4 PV address changed<br># Chapter 4.1.5 Remark regarding current sample shipment added<br># Chapter 4.1.6 Response rule updated. Unconfirmed but plausible responses clarified | See cover page |

| | | |
|---|---|---|
| | # Chapter 4.1.10 Language statement added, micro language part removed from the chapter.<br># Chapter 4.1.11 Remark added.<br># Chapter 4.1.12 Removed from the document as not applicable for the country.<br># Chapter 4.1.14 Wording adjusted as per process changes, chapter 4.1.14.2 removed.<br># Acknowledgement and response letters updated | |

## 7 Annex 1

# Product Complaint Form / *Форма скарги на якість*

Complaint created (date) / Скаргу створено (дата):
Complaint received (date) / Скаргу отримано (дата):

| **Product information / Інформація про продукт:** | |
|---|---|
| Product name / Назва продукту | |
| Batch / lot number / Номер серії | |
| Dosage form *(cream, tablet, capsule, etc.)*/ Форма випуску *(крем, таблетки, капсули, та ін.)* | |
| Package type/size / Вид та розмір упаковки | |
| Number of packages / Кількість упаковок | |
| Sample available?*/ Зразок наявний?* | ☐ Yes/ ☐ No |
| *Sample available = please keep for further potential shipment / *Наявний зразок = будь ласка, збережіть для подальшої відправки | |

| **Complaint information /Інформація про скаргу:** | |
|---|---|
| Complaint description (defect description, is it suspected counterfeit case, etc.) / Опис скарги (опис дефекту, підозра щодо фальсифікації, та ін.) | |
| Adverse event reported? / Побічна реакція? | ☐ Yes/ ☐ No |
| Does the complainant expect a response from Bayer?** / Чи очікує Скаржник відповідь від Байєр?** | |
| **By requesting a response or applying a complaint containing personal data, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint and further dealing with complaint. (the exact sounding to be aligned with legal) / У випадку запиту на надання відповіді або у випадку залишення запиту що містить персональні данні, Скаржник погоджується на подальшу обробку персональних даних компанією Bayer з метою надання відповіді на подану скаргу та її подальше опрацювання | |

| **Complainants' contact information / Контактна інформація Скаржника**<br>attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU) / Увага: в країнах з особливими умовами Обробки персональних даних буде замінено кодовим номером Скаржника (присвоюється ВКЯ). | |
|---|---|
| Name and surname / Прізвище та ім'я | |
| E-mail address / E-mail адреса | |

| | |
|---|---|
| Telephone / Телефон | |
| Home address / Домашня адреса | |

| **Sender (if other than Complainant, e.g. a pharmacy) / Відправник (якщо Скаржник інший, наприклад аптека)** | |
|---|---|
| Senders' Name (Legal entity) / Ім'я відправника | |
| Address / Адреса | |
| E-mail address / E-mail адреса | |
| Telephone / Телефон | |

| | |
|---|---|
| **Any additional information / Будь-яка додаткова інформація** | |

Attention!!! Filled Form has to be sent to e-mail: ptc.ua@bayer.com / УВАГА!!! Заповнену форму відправити на електронну адресу: ptc.ua@bayer.com

Annex 2 Acknowledement lette

Annex 3 Response letter

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|---|---|
| Task: Content Approval<br>Verdict: Approve changes & release<br>Approval to be made Effective | Svitlana Krokhmal,<br>(svitlana.krokhmal@bayer.com)<br>Approver - Content<br>27-Jun-2025 07:08:04 GMT+0000 |

| | |
|---|---|
| Task: Final Approval<br>Verdict: Approve changes & release<br>Final Approval to be made Effective | katarzyna mazur kominek,<br>(katarzyna.mazur-kominek@bayer.com)<br>Approver<br>30-Jun-2025 05:59:16 GMT+0000 |